

SEPARATE OPINION BY M. ALTAMIRA.

[*Translation.*]

My dissent from the foregoing judgment is mainly in respect of the two following points: the interpretation of the Treaty of 1863 and the findings upon the submissions of the Applicant.

I will confine myself to indicating my interpretation of the Treaty in so far as is necessary to explain why I cannot accept all the grounds on which the judgment is based, though this does not prevent me from arriving for different legal reasons at the same conclusions as the findings of the judgment, with the sole exception of the finding in regard to the Neerhaeren Lock.

I.

The Treaty of May 12th, 1863, constitutes, in my view, a well constructed and complete system in which the various articles are interconnected, each serving to explain and complete the others, thus achieving the objects which are fully and reasonably set out in the Preamble itself.

Regarding the Treaty as a whole, it is possible to discern three groups of provisions: one comprising Articles I, II, III, IV, V, VI, VII, VIII and XI, which deal with the feeding of and navigation upon certain canals referred to in Article I; another comprising Articles X and XIII which relate to the carrying out of works made necessary by the provisions of the first group, and a third comprising Articles IX and XII, which concern navigation on the Meuse at different points. This structure of the Treaty, which is due to the needs with which the Parties were concerned in 1863, serves to explain the import of the Preamble.

Before analyzing the articles of the Treaty, I find it necessary to make two general observations.

First of all, I would say that, in my view, every one of the obligations, whether common to the two contracting Parties or peculiar to one of them, contained in the Treaty, is essential in respect of the type of interests to which it relates; but it follows that none of them takes precedence over the others and still less can render them superfluous. On the contrary, each article of the Treaty requires the precise fulfilment of that part of the agreement between the contracting States which it represents; the interdependence which may exist between that part and the provisions of other articles (e.g. Art. IV and Arts. III, V and XI) merely places conditions or limits upon the exercise of each right or the fulfilment of each obligation; but, subject to these conditions or limits, where they exist, the

provisions of each article remain intact and nothing should prevent their application. For otherwise the Treaty would cease to be a harmonious whole and would fail to fulfil one or more of its objects instead of serving them all in accordance with the plan jointly adopted by the Parties.

Besides this general consideration which, in my view, governs the Treaty as a whole and each of its articles, there is the fact—entirely natural since we are dealing with a treaty—that the Treaty of May 12th, 1863, involves obligations and that these obligations must be fulfilled. The fact that the Treaty is chiefly concerned with the adjustment of the Parties' interests and not with differences of a really legal nature does not mean that no legal relationship is established as regards the fulfilment of the agreement in regard to interests. These interests may have been the reason for the conclusion of the Treaty, but once the Treaty has come into existence, the rights and obligations which it expressly or implicitly creates take precedence. The interests remain in the background and can only be taken into account in so far as is permitted by the legal provisions embodied in the agreement between the Parties. They can never take the place of these provisions or impede their execution.

Having made these general observations, I now come to the interpretation of the articles of the Treaty.

Article I is for many reasons of considerable importance for a proper understanding of the Treaty. It has been very much discussed by the Parties in this case. It is connected with all the other articles relating to the diversion and allocation of water, and more especially with Article II and Article IV.

An analysis of its terms gives the following results: an obligation to construct at Maestricht a work for the diversion of water from the Meuse; the definition of this work as "the feeder", i.e. the only feeding conduit for certain canals and irrigation channels; the qualification of these canals by the words "situated below" Maestricht, and of the irrigation channels as those "of Campine and of the Netherlands". The character of the new feeding conduit as the only feeder which is expressed by the wording of the Article, is confirmed by the terms of the last paragraph of Article IV, which stipulates that the intake of Meuse water previously existing at Hocht is not to be used, that is to say its abolition in practice, since no other source for the feeding of the canals referred to in Article I may exist once the feeding conduit through which is discharged the volume of water taken from the Meuse at Maestricht has been constructed.

Two obligations naturally ensue from this circumstance. One—common to both Parties—is the obligation not to make—or

not to retain—another intake having the same purpose or the same result in practice as that which the Maestricht feeder is henceforward alone to serve. To my mind, it is obvious that the obligation covers the two following points: the intention to supply water and the actual fact of the supply of water to canals “below Maestricht”, since though it is impossible to imagine that an intake would be made with the express object of feeding these canals unless that object were fulfilled—for otherwise the intention would not be carried out—there is the possibility that though the object were lacking, the feeding might nevertheless take place. It is clear that, in Article I, the actual feeding of the canals and not the construction of the intake with its feeding conduit is the essential point. Unless the feeding actually takes place, the intake would be of no use for the fulfilment of the object of the agreement between the Parties.

The other obligation, likewise common to both Parties, is the obligation to do nothing which—apart from a supplying of water from a source forbidden by the first obligation—would make it impossible to execute Article I completely and consequently also the other articles which constitute its complement or corollary. This second obligation, so far as Belgium is concerned, relates to the volume of water to be assigned to the Maestricht intake which naturally depends on the total volume of water in the Meuse above Maestricht in Belgium territory. Thus, if intakes intended for the supply of water for some object other than canals referred to in Article I, were made above Maestricht to carry off quantities of water which would make it impossible for the Maestricht feeder to fulfil its function under the conditions laid down by the Treaty, it is clear that this would be contrary to Article I, as well as—as we shall see—to Articles IV and V. Of course, though this obligation appears particularly to concern Belgium, it also concerns the Netherlands in so far as it may be possible for action taken in their territory to interfere with the fulfilment of the function of the treaty feeder. In my opinion, this is all that is to be found or can be deduced from the terms of Article I—which is very clear—without going beyond its scope. Any further obligation or right on the part of the Netherlands Government or the Belgian Government is only to be found in the following articles of the Treaty.

As regards what canals were referred to by the words in the Article “below Maestricht”, everyone knew quite well in 1863 which canals were meant, and the Treaty did not need to enumerate them. It is fair to assume that the authors of the Treaty thought it unnecessary to mention them by name. Moreover, the judgment does so in more than one passage in its grounds, and there is nothing further to add.

The first paragraph of Article II simply draws a conclusion from Article I. If the new intake was thenceforth to be the sole "feeder" for the canals—a service hitherto performed by the intake at Hocht, about to be abolished—the lock connected with the Hocht intake became useless where it was. But since the function it performed was still required for purposes of navigation, it had to be transferred to the place where the new intake was to be built. We shall see later that this paragraph of Article II has also a special significance in connection with the finding concerning Neerhaeren.

The second paragraph of this Article II is only important in the present case as emphasizing the importance of navigation on the canals. It anticipates a consequence following from the execution of Article I, the first paragraph of Article II and the last paragraph of Article IV and, to remedy the resulting inconvenience, orders the execution of certain hydraulic works. Article III pursues the same aim on another part of the canal.

Paragraphs 1 and 2 of Article IV fix the quantity of water which can be taken from the Meuse by the Maestricht intake, varying with the level of water in the river. Thus they determine the flow of the intake provided for in Article I. The two paragraphs mark the limits of this flow and thereby impose an obligation upon the Netherlands, in whose territory the new feeder operates, not to exceed these limits, subject to a right in favour of the Netherlands Government, which is not expressed in Article IV, but in paragraph 2 of Article V.

The third paragraph of Article IV prescribes the placing at the mouth of the new intake of a gauge indicating the low water level fixed in the preceding paragraph.

Finally, the last paragraph of Article IV formulates expressly, as already said in reference to Article I, one of the main consequences ensuing from that Article: viz., the discontinuance of the Hocht intake, already mentioned in Article II—an intake which was situated in Belgian territory above Maestricht.

Article V, paragraph 1, fixes, on the basis of the maximum volume which can be taken from the Meuse by the Maestricht feeder, the distribution of this water between the two interested countries. The allocation is not made on terms of equality, Belgium being the more favoured Party, but the reasons for this inequality of treatment are of no importance to the questions now at issue. We need only note the obligation which this paragraph imposes upon the Netherlands to discharge the

two cubic metres per second allotted them ($1\frac{1}{2}$ when bound by the minimum as provided in Art. IV) through lock 17 at Loozen in the direction of Netherlands territory, these two metres being intended for "the canals and irrigation channels of the Netherlands".

On the other hand, paragraph 2 of Article V grants permission to the Netherlands Government to "increase the volume of water taken at Maestricht" (i.e. the total maximum volume fixed in Art. IV and requiring to be passed through the new feeder). This increase will in practice affect the quantity of water allowed to the Netherlands by paragraph 1 of Article V, as is clearly shown by the words in this same paragraph 2: "this surplus water will also be discharged through lock 17 at Loozen" (as well as the two cubic metres of para. 1).

The right thus to increase the volume of water especially assigned to the Netherlands is not restricted to a certain number of cubic metres, but is limited in this same paragraph by the fact that the increase may not be of such amount as to cause "the speed of the current in the canal to exceed the limits fixed in Article III". This "average" speed shall not exceed "a maximum of 25 to 27 centimetres per second".

Within these limits therefore, the right granted to the Netherlands is purely discretionary.

Article VI deals particularly with irrigation, which, according to the Preamble, is the second aim of the Treaty. I need not analyze this Article, as it is of little importance to our case. The same applies to Article VII, which imposes a further obligation upon Belgium, and to Article VIII.

Article IX introduces the second group of treaty provisions to which I referred at the beginning. It concerns the improvement of navigation, not on the canals mentioned in Article I, but on the Meuse in the part of the river between Maestricht and Venlo, which in 1863 presented serious obstacles to safe navigation. It has no connection with the Maestricht feeder nor with the supply of the canals referred to in Article I.

Article X is again concerned with the intake of Article I, but only from the technical point of view of works to be constructed there and of the works mentioned in Article II. It adds nothing essential in regard to the questions now at issue. The same is true of Articles XII and XIII. Article XIV deals only with ratification of the Treaty.

Article XI, on the other hand, supplements paragraph 2 of Article V in case the exercise of its right by the Netherlands

Government should require the execution by it of certain hydraulic works. In this event, but only in this event, "the question of the co-operation of the Belgian Government.... will be settled between the two Governments", in regard to the "measures necessary to secure discharge of the water through the Zuid-Willemsvaart". It appears to me clear that, as long as the increased volume granted to the Netherlands Government is furnished by the Maestricht feeder, the water is bound to be discharged into the Zuid-Willemsvaart, since the feeder communicates only with that canal. Article XI seems to me to provide for the possibility of new hydraulic works being constructed between the feeder and the said canal or in some other way allowing the surplus water permitted by Article V to be discharged in some other direction. The possible effect of this surplus water on the current of the canal is already provided for in Article V.

In this interpretation of the 1863 Treaty, I have been at pains to state by an analysis of its articles the express or implied obligations contained in each of them. The Treaty does not seem to me to impose any other obligation upon either Party. In my view, however, each of these obligations must be observed irrespective of the others, and the fulfilment of the others cannot excuse the non-fulfilment of one.

Before concluding this part of the present opinion, I would point out, among the practical consequences to be drawn from an interpretation of the 1863 Treaty—thus passing beyond the sphere of law—the fact that the obligations under this Treaty are perhaps somewhat restrictive, having regard to circumstances that have since developed. This is certainly not a question for the Court or for a judge to examine, but it arises quite naturally from a study of the legal elements contained in the Treaty and from knowledge of present-day conditions. As long as the Treaty remains in force, it must be observed as it stands. It is not for the Treaty to adapt itself to conditions. But if the latter are of a compelling nature, compliance with them would necessitate another legal instrument.

II.

To explain the grounds of my dissent from the finding concerning the Neerhaeren Lock, as contained in the reasons for the present judgment, I need only apply my interpretation

of Article I of the Treaty of 1863 and my general remarks on the Treaty system.

The canals referred to in Article I may not be fed otherwise than from the Maestricht intake and its feeding conduit, firstly because that is the only place where feeding is permitted and secondly because the quantity of water to be diverted for this purpose may not exceed the maximum volume fixed by Article IV, and, as regards the surplus allowed to the Netherlands by Article IV, paragraph 2, only the Netherlands Government may supply it within the limits fixed in that paragraph.

The case of lock 19 cannot, in my view, be invoked to refute the foregoing argument. This lock was created by the Treaty, and this fact confers upon it a legal status which renders it consistent with the rest of the convention, a status which no other lock not recognized by the Treaty and discharging water into the canals by conduits other than the Maestricht feeder, would possess. Nor is there anything in Article II which, in my view, would justify the deduction that the Treaty recognizes the general principle that water discharged by locks, of which water the principal and normal purpose is not that of feeding the canals referred to in Article I but which in fact does constitute a feeding of such canals with water not taken from Maestricht, may be assimilated to water from the new lock 19, and still less to water passing into the Zuid-Willemsvaart by the Maestricht conduit. The fact that the water hitherto discharged by the Neerhaeren Lock has not increased the speed of the current does not seem to me to alter the character of the supply of water discharged by that lock. The provisions of Articles I, IV and V are in my view contrary to this conclusion.

(Signed) RAFAEL ALTAMIRA.